

Mah Kiat Seng v Nathan S/O Puspagaran

[2026] SGMC 75, Magistrate's Court Originating Claim No 6953 of 2025, Magistrate's Court Summons No 1694 of 2026

State Courts of the Republic of Singapore, Magistrate's Court

Jurisdiction

Singapore

Area of law

Tort law; assault and battery; harassment under the Protection from Harassment Act 2014

Legal question

Whether the defendant assaulted and battered the claimant on 15 July 2024, and whether the defendant harassed the claimant on 27 March 2025 and 1 May 2025 under sections 3 and 4(1) of the Protection from Harassment Act 2014. Specifically, whether the claimant discharged his burden of proof on a balance of probabilities for the claims of assault, battery, and harassment.

Key facts

The claimant and defendant are neighbours residing in adjacent Housing and Development Board flats in Block 633, Pasir Ris Drive 3. Three incidents of altercation occurred along the common corridor: 15 July 2024, 27 March 2025, and 1 May 2025. On 15 July 2024, the claimant alleges the defendant adopted an attacking posture with clenched fists and raised hands, charged at him, and grabbed his right hand, causing pain. The claimant claims the defendant also kicked his slippers. On 27 March 2025, the claimant alleges the defendant came to his flat and hurled expletives at him. On 1 May 2025, the claimant alleges the defendant walked towards his flat and scolded vulgarities at him. The claimant sought damages of \$20,000 for assault and battery, \$10,000 for harassment, and \$10,000 in aggravated damages. The defendant denied all allegations and provided contradictory accounts of each incident, supported by CCTV footage and other evidence.

Holding

The claimant's action is dismissed. The court found that the claimant failed to discharge his burden of proof on a balance of probabilities for all claims. Regarding the assault and battery claim for 15 July 2024, the claimant provided only his own assertions without independent corroborating evidence—no witnesses, medical evidence, or photographic evidence of injuries. The claimant failed to shift the evidential burden of proof to the defendant, leaving the legal burden on him which he did not discharge. Regarding the harassment claims under the Protection from Harassment Act 2014 for 27 March 2025 and 1 May 2025, the claimant similarly failed to prove that the defendant used threatening, abusive or insulting words or behaviour, that the defendant intended to cause harassment, alarm or distress, or that the claimant was likely to suffer such harassment, alarm or distress. The defendant's version of events contradicted the claimant's case, supported by CCTV footage and call logs. The court also dismissed Magistrate's Court Summons No 1694 seeking production of video footage of the alleged charging and attacking, as no such footage existed. No leave to appeal was granted as the case involved only questions of fact with no serious and important issue of law.

Significance

This judgment illustrates the critical importance of the burden of proof in civil proceedings and the requirement that a claimant must adduce evidence to support factual allegations before the evidential burden shifts to the defendant. The case demonstrates that bare assertions without corroborating evidence—such as witness testimony, medical records, or photographic evidence—are insufficient to discharge the burden of proof on a balance of probabilities. The decision is particularly significant for neighbour disputes and harassment claims under the Protection from Harassment Act 2014, establishing that claimants must provide concrete evidence of threatening, abusive or insulting conduct and the requisite intent or likelihood of causing harassment, alarm or distress. The judgment also confirms the application of established burden of proof principles from the Evidence Act 1893 and the distinction between legal and evidential burdens in civil litigation.

Precedent impact

The judgment applies established precedent from *SCT Technologies Pte Ltd v Western Copper Co Ltd* [2016] 1 SLR 1471 regarding the distinction between legal and evidential burdens of proof in civil proceedings. It reaffirms that the legal burden of proof remains permanently with the claimant and does not shift, while the evidential burden may shift between parties. The decision also applies the test for leave to appeal established in *Lee Kuan Yew v Tang Liang Hong* [1997] 2 SLR(R) 862 and recently affirmed in *Luckin Coffee Inc v Interactive Digital Finance Ltd* [2024] 1 SLR 254, requiring a serious and important issue of law to be demonstrated.

Full judgment URL

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